

ORDER SHEET.
IN THE ISLAMABAD HIGH COURT, ISLAMABAD.
JUDICIAL DEPARTMENT.

Criminal Miscellaneous No. 201 of 2025

BABAR KHURSHEED
Versus
THE STATE AND ANOTHER

S. No. of order/ proceedings	Date of order/ proceedings	Order with signature of Judge and that of parties or counsel where necessary.
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3.3.2025.

**Mr. Imran Khan, Advocate for the Petitioner.
M/s Raja Zamir uddin Ahmed and Sarfraz
Rauf, AAGs.
Mr. Sajjad Ali, DD/FIA.
Mr. Khurram Mahmood Qureshi, Advocate
for the Complainant.**

1. Through the instant petition, the Petitioner [Imran Khan] is seeking post-arrest bail in FIR No. 253/23 dated 27.12.2023 registered for the offences under Sections 295-A, 295-B, 295-C, 298-A and 109, Pakistan Penal Code, 1860 (“PPC”) read with Section 11 of the Prevention of Electronic Crimes Act, 2016 (“PECA”) at Police Station FIA, Cyber Crime Reporting Centre, Islamabad (“Subject FIR”).
2. The brief facts are that primarily the Subject FIR was registered against one Aizaz Ahmad for illegally creating, uploading, and dissemination of blasphemous content through Facebook and associated mobile phone numbers. The role of other involved persons was to be clarified during the investigation.
3. During the investigation, electronic device, mobile phone Infinix bearing IMEI No 1-353325113465383 and IMEI No 2-

353325113465391, along with SIM No 03032123462 and SIM No 03337765669, were recovered from the Petitioner/Accused. Additionally, his WhatsApp Account No +923032123462 was found linked to the transmission of blasphemous content. Upon technical analysis it was discovered that the Petitioner/Accused used his WhatsApp account to share blasphemous content, including images, graphics, and pictures that defiled sacred Islamic principles, such as disrespectful portrayals of the Holy Prophet Muhammad (PBUH), Ahl-e-Bayet (A.S) and the Holy Quran.

4. The learned counsel for the Petitioner/Accused contended that the Petitioner has nothing to do with the commission of the alleged offences; that the Complainant in connivance with FIA authorities registered a false and frivolous case against the Petitioner/Accused with *mala fide* intentions and ulterior motives; that the Petitioner/Accused was not nominated in the FIR and has been involved in the alleged offences after ten months of the registration of the FIR; that nothing incriminating is available on record against the Petitioner/Accused; that the Petitioner/Accused is mentally ill and is patient of depression and anxiety facing memory loss and anger issues hence there is no chance of his involvement in the alleged offences; that no specific record of time and date of sending blasphemous content by the Petitioner/Accused has been mentioned in the interim challan which makes the prosecution case doubtful; that the

Petitioner/Accused is behind the bars since his arrest on 1.8.2023; that the Petitioner has no previous record; and that the Petitioner is ready to furnish sufficient surety to the satisfaction of this Court.

5. On the other hand, the learned AAG assisted by the learned counsel for the Complainant submitted that there is sufficient material available on record which connects the Petitioner/Accused with the commission of the alleged offences; and that the alleged offences falls within the prohibitory clause of Section 497, Code of Criminal Procedure, 1898 (“Cr.P.C”). The learned AAG as well as the learned counsel for the Complainant prayed for dismissal of instant Bail Petition.

6. I have heard the learned counsel for the parties as well as the learned AAG and have also perused the available record.

7. The alleged offences entail punishment of 10 years; life imprisonment or death and as such falls within the prohibitory clause. According to the police record the mobile number from which the alleged blasphemous material was sent is registered in the name of the Petitioner. As such *prima facie* connection of the Petitioner with the alleged offences has been made out.

8. The Technical Analysis Report is on record, which, *prima facie* establishes the involvement of the Petitioner/Accused in the alleged offences. Regarding the other arguments presented by the learned counsel for the Petitioner/Accused, it is

sufficient to note that at the bail stage, the purpose is not to delve into the evidence or examine the factual details of the case as the same is the responsibility of the Trial Court, and requires evidence from both sides to be presented. Moreover, if this Court enters into the realm of the Trial Court during the bail stage, it would be harmful to both parties and may unfairly influence the case of either side. Therefore, I refrain from commenting on the merits of the case and conclude that, at this stage, the Petitioner/Accused is not entitled to bail.

9. For what has been discussed above, this bail Petition is **dismissed**.

10. Needless to observe that all the observations made hereinabove are tentative in nature and shall not affect the merit of the case.

(MUHAMMAD AZAM KHAN)
JUDGE